

ASCII MASTER FLOW – PANEL 1/9: One hierarchy, constitutionally significant High Courts

SUPREME COURT

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HIGH COURT: constitutional court + appellate court + judicial administrator

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DISTRICT AND SUBORDINATE COURTS: ordinary civil/criminal justice.

ARTICLES 214-231 -> High Courts | ARTICLES 233-237 -> subordinate courts.

CURRENT STRUCTURE

25 High Courts; Parliament may establish a common High Court for two or more States/UTs.

INTEGRATED DOES NOT ERASE DECENTRALISED CONTROL

High Court Article 226 access + Article 227 superintendence + Article 235 control
make it the everyday constitutional and administrative court within its territory.

ASCII MASTER FLOW – PANEL 2/9: High Court appointments, qualification and independence

ARTICLE 217: APPOINTMENT

President appoints after the constitutionally required consultation architecture operating through the higher-judiciary collegium system.

QUALIFICATION

Indian citizen + ten years in judicial office OR ten years as High Court advocate.

SERVICE

oath before Governor or appointee | retirement 62 | removal through Article 124(4)-type route
| protected salary and conditions | charged expenditure | post-retirement practice limits.

APPOINTMENT CASE ARC

First Judges Case (1981) -> executive primacy

Second Judges Case (1993) -> judicial primacy

Third Judges Case (1998) -> plural collegium

Fourth Judges Case (2015) -> NJAC invalid; collegium remains operative.

ASCII MASTER FLOW – PANEL 3/9: Transfer, acting/additional judges and common High Courts

ARTICLE 222 TRANSFER

President transfers after CJI consultation; public interest and judicial independence govern.
Sankalchand Himmatlal Sheth (1977) -> transfer power exists;
consultation must be full and effective.

TEMPORARY CAPACITY

Article 223 acting Chief Justice

Article 224 additional and acting judges for arrears or temporary need

Article 224A retired-judge sitting with consent

Article 231 common High Court by parliamentary law.

TRAPS

additional judge is not a lower rank | common High Court does not merge States
| transfer is not ordinary executive service management | vacancy data are dynamic.

ASCII MASTER FLOW – PANEL 4/9: Original, appellate, writ and territorial jurisdiction

ORIGINAL

constitutional/statutory matters and specified civil jurisdictions depend on law and court history.

APPELLATE

civil + criminal appeals from subordinate hierarchy;
death sentence requires High Court confirmation.

ARTICLE 226 WRIT

Fundamental Rights + any other legal right; habeas corpus may reach private detention;
public-duty mandamus may reach a non-State body.

TERRITORIAL RULE

seat/respondent connection plus Article 226(2) cause of action wholly or partly within territory.

FIVE WRITS

habeas corpus | mandamus | prohibition | certiorari | quo warranto:
choose by wrong, target, timing and remedy, not by memorised definition alone.

ASCII MASTER FLOW – PANEL 5/9: Article 226 versus 32, superintendence and control

ARTICLE 32

Supreme Court
itself a Fundamental Right
Fundamental Rights
national apex route

ARTICLE 226

High Court
constitutional power, not a Part III right
Fundamental Rights + other legal rights
territorial cause-of-action route

ARTICLE 227

superintendence over courts and tribunals within territory, subject to constitutional exclusions.

ARTICLE 228

withdraw case involving a substantial constitutional question and decide or return it.

ARTICLE 235

High Court control over district and subordinate judiciary protects decisional independence.

L. Chandra Kumar (1997) -> Articles 226/227 and 32 review are Basic Structure;
tribunals supplement but cannot wholly replace constitutional courts.

ASCII MASTER FLOW – PANEL 6/9: District judges and subordinate judicial independence

ARTICLE 233 DISTRICT JUDGES

Governor appoints in consultation with High Court;
direct Bar recruit requires at least seven years as advocate/pleader and High Court recommendation.

ARTICLE 234 OTHER JUDICIAL SERVICE

Governor makes appointments under rules after consultation with State PSC and High Court.

ARTICLE 235 CONTROL

posting, promotion, leave and discipline under High Court control, subject to legal safeguards.

ARTICLE 50

State shall separate judiciary from executive in public services.

Chandra Mohan (1966) -> executive dominance over district-judge selection violates the constitutional scheme of an independent judicial service.

ASCII MASTER FLOW – PANEL 7/9: Gram Nyayalayas, tribunals and the AIJS debate

GRAM NYAYALAYAS ACT, 2008

bounded statutory local-court model for notified areas; establishment and functioning are uneven.

TRIBUNALS

specialisation + speed potential

VERSUS appointments, tenure, executive control and fragmented appeals.

L. Chandra Kumar (1997) keeps High Court judicial review as the constitutional floor.

ALL INDIA JUDICIAL SERVICE

Article 312 route -> Rajya Sabha two-thirds of members present and voting

-> parliamentary law; Article 312(3) excludes posts below district judge.

DEBATE

national standards and vacancies versus language, local law, federal control and career integration.

CURRENT STATUS: no AIJS has been created.

ASCII MASTER FLOW – PANEL 8/9: Vacancies, pendency, legal aid and eCourts

DELIVERY BOTTLENECK

vacancies + infrastructure + process delay + adjournments + government litigation
-> pendency -> cost -> unequal bargaining -> reduced trust.

ACCESS LAYER

Article 39A legal aid | NALSA/SLSA/DLSA | Lok Adalats | e-Sewa Kendras.
Speedy-trial access principles belong to the wider rights chain;
do not equate disposal with justice.

eCOURTS PHASE III, 2023-2027

digitisation + e-filing + e-payments + paperless courts + data-based management.

LIMIT

technology can reduce transaction costs but cannot replace judges, translators, connectivity, accessible design, reasoned hearings or enforcement capacity.
Quote dynamic numbers only with a date.

ASCII MASTER FLOW – PANEL 9/9: SC-HC-subordinate comparison, traps and answer spine

SUPREME COURT

national apex

Article 32

Article 141 precedent

final appeals/SLP

HIGH COURT

territorial constitutional court

Article 226 wider in cause

Article 227 superintendence

appeals + administration

SUBORDINATE COURTS

ordinary trial hierarchy

statutory jurisdiction

bound by higher courts

facts, trial and first appeal

PRELIMS FIREWALL

HC retirement 62, SC 65 | Article 226 wider than 32 | common HC by Parliament

| district judges: Governor + HC consultation | Article 235 control with HC | AIJS absent.

MAINS SPINE

locate Article -> state institutional function -> appointment/control safeguard

-> access or capacity problem -> case with year -> cooperative reform

-> independent, decentralised and digitally inclusive justice conclusion.